Villa & Dawson LLP

Pasadena, TX
Phone 832-555-1247

Settlement Demand

2024-04-18

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1116 - Demand for settlement

Dear Claims Representative:

Our office represents Jennifer Boyd in connection with the rear-end collision that occurred on 2023-03-24. Our client was stopped at a traffic signal when the vehicle operated by your insured struck the rear of our client's vehicle with considerable force. The police report documents the impact and identifies your insured as the driver who failed to stop in time.

As a direct result of the collision, our client sustained a significant injury to the right shoulder. Imaging confirmed a partial rotator cuff tear, and our client has undergone physical therapy and continues to experience pain, limited range of motion, and difficulty performing ordinary daily tasks. Treating physicians have indictaed that further treatment may be required.

Liability in this matter is clear. Your insured had a legal duty to maintain a safe following distance and to keep a proper lookout, and that duty was breached. Our client bears no responsibility for the collision.

Accordingly, we demand payment of $228,000.00 to resolve all claims arising from this incident. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice to your company.

Expert review: Jessica Herrera, accident reconstructionist

Sincerely,

Jeffrey Hayes
Villa & Dawson LLP